

The Claremont City Council held a meeting on Wednesday, October 12th, 2022, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward II Councilor James Contois
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

City Manager Manale requested the Council remove Ordinance 600 from the agenda, and suggested a workshop next Tuesday or Wednesday from 6PM-8PM to present proposed changes, Council agreed.

REPORT OF THE SECRETARY

A motion was made by Councilor O’Hearne and seconded by Councilor Limoges to accept the minutes of the September 28, 2022, City Council meeting.

Assistant Mayor Matteau wanted to make a change to the minutes on Page 18, under Committee Reports: After “Councilor Contois also noted the HDC was still discussing the potential demotion of vacant buildings in the City. To insert “Mayor Girard asked if had there been a decision made by the HDC regarding the demotion requests; Councilor Contois responded that the Commission had not reached an agreement yet.

Voice vote:

Contois - yes
O’Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes

Limoges - yes
Batchelder - yes
Mooshian - yes
Girard - yes
Motion carried 9-0

MAYOR'S NOTES

Mayor Girard asked for a moment of silence for two retired Claremont City employees who had recently passed away. David Kinson who was a Police Officer and a Firefighter, and Valerie Azotea from the City Clerk's Office.

Mayor Girard noted the Airport cutting ceremony was well attended and thanked everyone for coming out.

Fireman's parade will take place Friday at 6:30PM.

Mayor Girard presented a Proclamation for Purple Hearts; Steve and Gary Blish were in attendance from the VFW and Mayor Girard read the Proclamation.

Councilor Limoges showed everyone an example of the Purple Heart signs that will be displayed around town.

CITY MANAGER'S REPORT

City Manager Manale thanked the Council for having him, thanked everyone for the opportunity to serve this City, and noted his excitement to get started.

Mr. Manale mentioned the transfer station contract is being finalized.

Mr. Manale expressed coming up to speed on the Sullivan Smokestack, and will be meeting with a contractor within the next couple of weeks.

Nick Lawrence, Director of Parks and Recreation introduced himself to Council. Mr. Lawrence noted there is lots of opportunity in this town, and is looking forward to use skills and knowledge to serve this community.

APPOINTMENT TO BOARDS AND COMMITTEES

None.

CITIZEN'S FORUM

Mayor Girard reminded all who speak during Citizens Forum to state name, and ward.

Walt Stapleton, Ward 3, Sullivan County district 5, and Candidate for District 6 - Croydon and Claremont. Mr. Stapleton mentioned the Council Meetings are a great venue for public to meet candidates with citizen participation. Mr. Stapleton asked to introduce District 8 candidate, Donald Bettencourt.

Don Bettencourt, from Sunapee, running for District 8, thanked Mr. Stapleton and the Council for the opportunity. Mr. Bettencourt noted his family spends half their life here in Claremont and shops most of our stores. Mr. Bettencourt noted his wife is involved with the Claremont Court, advocating for children. Mr. Bettencourt's background is in the nuclear power industry and is interested in energy as well as small businesses.

Gary Dickerman, Ward 3, on behalf conservation commission, noted last Friday was clean-up day in Claremont sponsored by the Ink Factory. Mr. Dickerman noted the largest portion of the clean-up day was on the class 6 part of Cat Hole Road. Mr. Dickerman stated it was in horrible shape, and gave a shout out to the DPW for providing a dumpster.

Mike Lemiux, Ward 2, spoke about developing a property on Mulberry St., and is requesting a slope easement. Mr. Lemiux noted this would be done at his own expense. Mayor Girard stated the City Manager will speak with Public Works, and Planning and Development.

Assistant Mayor Matteau stated she wanted to to publicly apologize to the HDC in part of the discussion held at the last Council meeting, and noted the conversation was held on information that wasn't correct. Assistant Mayor Matteau explained the HDC did in fact make a decision and Councilor Stone seconded the apology.

Councilor Contois noted he does not speak for the Commission. Assistant Mayor Matteau does not agree with that statement and noted most of the Councilors bring forward information from the committees they are on.

Councilor Contois asked for the opportunity for Ms. Damon to speak.

Jim Contois, Ward 2, asked the Council for the opportunity to invite Hope Damon a county representative to speak.

Hope Damon, thanked Councilor Contois and Council for the opportunity. Ms. Damon explained her background, and made note that she had thought about running for State Representative for 5 years. Ms. Damon mentioned that now is the right time. Ms. Damon noted she wants to represent the citizens of Claremont

Norm Blouin, Ward 3, shared concern over giving up land for solar panels, and mentioned the panels don't produce much power as this area doesn't get a lot of sunlight. Mr. Blouin also shared concern for two departments- Planning and Development, and Department of Public Works. Mr. Blouin concluded by stating it was nice to see everyone sitting together.

OLD BUSINESS

Ordinance 598 Merit Plan - Third Reading- Public Hearing - (City Manager/Human Resources Manager)

CITY OF CLAREMONT - IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #598

Amending the Non-Union Employee Classification Plan and Non-Union Employee Pay Schedule

THE CITY OF CLAREMONT ORDAINS:

Pursuant to Article III, Sections 24, 25 and Article IV, Section 52, of the Claremont City Charter; the Non-Union Employee Classification Plan (Attachment B) as well as the Non-Union Employee Pay Schedule (Attachment C) to the Non-Union Job Classification Plan are hereby amended and readopted as follows:

Section 1. Compensation and Job Classification

The compensation of every non-union employee of the city shall be determined by the classification of the job in which such person is employed and in accordance with Attachments B and C to the City's Merit System (which are on file in the city manager's office). Upon adoption of this Ordinance, the new versions of both Attachment B and C, which are exhibits to this Ordinance, shall be implemented with the proposed changes contained therein.

Section 2. Compensation for nonunion/nonexempt employees

With the exception of employees in grades 1 through 4, which are specified solely by an hourly wage rate, rates of compensation of each non-union, non-exempt city employee may be specified by hourly, weekly or annualized salary scales as set forth in Attachment C (on file in the city manager's office). An individual may be hired at or promoted to any salary within his/her job classification and designated Grade if, in the opinion of the department head with the concurrence of the city manager, such individual possesses such experience, skills, or knowledge that meet or exceed the requirements of the position.

Section 3. Salary scales for nonunion/exempt employees

The rates of compensation to be paid to each non-union/exempt city employee shall be at the annualized pay scales as set forth in Attachment C (on file in the city manager's office), with the exception of the salary of the city manager, which is discretionary with the city council. An individual may be hired at or promoted to any salary within his/her job classification and

designated Grade if, in the opinion of the department head with the concurrence of the city manager, such individual possesses such experience, skills, or knowledge that meet or exceed the requirements of the position.

Section 4. Prior Enactments Superseded

The pay schedules as adopted by action of the City Council concerning those set forth in Attachment C, prior to adoption of this Ordinance, and all prior amendments thereto, are hereby repealed as they pertain to same.

Section 5. Validity

If any article, section, subsection, sentence, clause or phrase of this ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this ordinance.

Section 6. Effective Date

This Ordinance shall take effect and be enforced as of January 1, 2023

Human Resources Manager, Samantha Lauzon explained this was the third and final reading of Ordinance 598, adjusting the non-union pay scale. Councilor Koloski recused himself.

A motion was made by Councilor Batchelder and seconded by Councilor Stone to suspend Council Rules and only read the explanation of proposed action.

Roll call:

Contois - yes

O'Hearne - no

Stone - yes

Matteau - yes

Koloski - abstain

Limoges - yes

Batchelder - yes

Mooshian - no

Girard - yes

Motion carried 6-2, (1 abstain)

A motion was made by Councilor Contois and seconded by Assistant Mayor Matteau to adopt Ordinance 598.

Councilor Contois read the explanation of proposed action into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Contois -yes

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski – abstained

Limoges - yes

Batchelder - yes

Mooshian - yes

Girard - yes

Motion carried 8-0, (1 abstain)

Ordinance 599 Sewer System

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #599

“SANITARY SEWER SYSTEM”

The City of Claremont Ordains:

Pursuant to New Hampshire RSA 47:17 and RSA 149-I, the Claremont City Code is hereby amended to revise Article II of Chapter 20, regulating the requirements for users of the City's publicly-owned treatment works, to comply with applicable provisions of state and federal laws and regulations as follows:

Section 1. Division 1 General Provisions

Chapter 20, Article II, Division 1, General Provisions, is updated, revised and amended as follows.

Section 20-27 Purpose and policy

Revise subsection (6) to change "Env-Ws 802.05" to "Env-Wq 802-07."

Sec. 20-30 Definitions

A. Delete the definition of "Significant indirect discharge" in its entirety and replace with the following new definition:

Significant Industrial User means:

(1) Except as provided in paragraphs (2) and (3) of this section, the term Significant Industrial User means:

- (i) All Industrial Users subject to Categorical Pretreatment Standards under 40 CFR 403.6 and 40 CFR chapter I, subchapter N; and
- (ii) Any other Industrial User that: discharges an average of 25,000 gallons per day or more of process wastewater to the POTW (excluding sanitary, noncontact cooling and boiler blowdown wastewater); contributes a process wastestream which makes up 5 percent or more of the average dry weather hydraulic or organic capacity of the POTW Treatment plant; or is designated as such by the Control Authority on the basis that the Industrial User has a reasonable potential for adversely affecting the POTW's operation or for violating any Pretreatment Standard or requirement (in accordance with 40 CFR 403.8(f)(6)).

(2) The Control Authority may determine that an Industrial User subject to categorical Pretreatment Standards under §403.6 and 40 CFR chapter I, subchapter N is a Non-Significant Categorical Industrial User rather than a Significant Industrial User on a finding that the Industrial User never discharges more than 100 gallons per day (gpd) of total categorical wastewater (excluding sanitary, non-contact cooling and boiler blowdown wastewater, unless specifically included in the Pretreatment Standard) and the following conditions are met:

- (i) The Industrial User, prior to the Control Authority's finding, has consistently complied with all applicable categorical Pretreatment Standards and Requirements;
- (ii) The Industrial User annually submits the certification statement required in §403.12(q) together with any additional information necessary to support the certification statement; and
- (iii) The Industrial User never discharges any untreated concentrated wastewater.

(3) Upon a finding that an Industrial User meeting the criteria in paragraph (1)(ii) of this section has no reasonable potential for adversely affecting the POTW's operation or for violating any Pretreatment Standards or requirement, the Control Authority may at any time, on its own initiative or in response to a petition received from an Industrial User or POTW, and in accordance with 40 CFR 403.8(f)(6), determine that such Industrial User is not a Significant Industrial User.

B. Revise the definition of *unpolluted water* to delete the reference to "Env-Ws 430 through Env-Ws 440" and insert in its place "Env-Wq 1700."

Section 2. Division 2 General Sewer Use Requirements

Sec. 20-46 Building Sewers and Connections

Revise subsection (g) to delete the reference to "Env-Ws 700" and insert in its place "Env-Wq 700."

Sec. 20-47 Prohibited Discharge Standards

A. Delete subsection (1) *General Prohibitions* and replace with a new subsection as follows:

(1) *General Prohibitions.* No user shall introduce or cause to be introduced into the POTW any pollutant or wastewater that causes pass-through or interference, or has an adverse effect on the receiving stream. These general prohibitions apply to all users of the POTW whether or not they are subject to categorical pretreatment standards or any other federal, State, or local pretreatment standards or requirements.

B. Revise subsection (2)(d) by inserting "constitute a hazard to humans or animals, create a public nuisance, exceed any national categorical pretreatment standard, cause process upset, loss of treatment ability or cause pass through" so that the subsection shall read as follows:

Pollutants, including oxygen-demanding pollutants (BOD, COD, etc.), or chlorine demand requirements released in a discharge at a flow rate and/or pollutant concentration that, either singly or by interaction with other pollutants, will cause interference with the POTW, *constitute a hazard to humans or animals, create a public nuisance, exceed any national categorical pretreatment standard, cause process upset, loss of treatment ability or cause pass through.*

C. Revise subsection (2)(k) to delete the reference to "Env-Wm 400" and insert in its place "Env-Hw 400."

D. Revise subsection (3) to delete subsections a, b, c, e, f, g, h, i, j, and k and renumber and insert these subsections to subsection (2), so that subsection (2), numbers l, m, n, m, o, p, q, r, s, t, and u and the remaining subsection (3) shall read:

(2)(l). Wastewater that imparts color that may not be removed by the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions, which consequently may impart color to the treatment facility's effluent, thereby violating the city's NPDES permit;

(m). Noxious or malodorous liquids, gases, solids, or other wastewater that, either singly or by interaction with other wastes, are sufficient to create a public nuisance or a hazard to life, or to prevent entry into the sewers for maintenance or repair;

(n). Wastewater containing any radioactive wastes or isotopes except in compliance with applicable state or federal regulations;

(o). Sludges, screenings, or other residues from the pretreatment of industrial wastes;

- (p). Detergents, surface-active agents, or other substances that may cause excessive foaming in the POTW;
- (q). Wastewater causing a reading on an explosion hazard meter at the point of discharge into the POTW, or at any point in the POTW, of more than ten (10) percent of the lower explosive limit of the meter;
- (r). Garbage that has not been properly shredded (garbage grinders may be connected to sanitary sewers from homes, hotels, institutions, restaurants, hospitals, catering establishments, or similar places where garbage originates from the preparation of food in kitchens for the purpose of consumption on the premises or when served by caterers);
- (s). Any quantities of flow, concentrations, or both that constitute a "slug" as defined in section 20-30 of this article;
- (t). Waters or wastes that, by interaction with other water or wastes in the POTW, release dangerous or noxious gases, form suspended solids that affect the operation of the collection system, or create a condition deleterious to structures and treatment processes; or
- (u). Any materials that exert or cause unusual concentrations of inert suspended solids (such as, but not limited to, Fullers earth, lime, slurries, and lime residues) or of dissolved solids (such as, but not limited to, sodium chloride and sodium sulfate).

(3) *Additional prohibitions.* No user shall introduce or cause to be introduced into the POTW the following substances, pollutants or wastewater, unless specifically authorized by the director of public works in a wastewater discharge permit:

- a. Storm water, surface water, ground water, artesian well water, roof runoff, subsurface drainage, swimming pool drainage, condensate, deionized water, non-contact cooling water, or otherwise unpolluted wastewater

Section 3. Pretreatment of Wastewater

Sec. 20-62 Additional Pretreatment Measures

A. Add the words "...required by local or state building code, or..." to the first sentence of subsection (c) so that the revised first sentence of the subsection shall read as follows:

- (c) Grease, oil, and sand interceptors shall be provided at the owner's expense when *required by local or state building code, or* in the opinion of the director of public works, these devices are necessary for the preliminary treatment of wastewater containing excessive amounts of grease and oil, or sand; except that such interceptors shall not be required for residential users.

B. Insert a new subsection (f) to read as follows:

(f) Dental practices that remove or place mercury containing amalgam shall comply with federal 40 CFR Part 441 and state Env-Wq 306 regulations.

Section 4. Division 4 Industrial Discharge Permit Application

Sec. 20-78 Discharge Permit Request Requirement

Delete the entire provision.

Section 5. Division 6 Reporting Requirements

Sec. 20-119 Notification of the Discharge of Hazardous Waste

Delete the entire provision.

Section 6. Division 6 Reporting Requirements

Sec. 20-120 – Renumber entire section, given deletion of Sec. 20-119, as follows:

<u>Current Section Number</u>	<u>New Section Number</u>
Sec. 20-120	Sec. 20-119
Sec. 20-120.5	Sec. 20-119.5
Sec. 20-120.10	Sec. 20-119.10
Sec. 20-120.15	Sec. 20-119.15
Sec. 20-120.20	Sec. 20-119.20
Sec. 20-120.25	Sec. 20-119.25
Sec. 20-120.30	Sec. 20-119.30

Sec. 20-120.20 Record Keeping

In the third sentence, delete "three (3)" and insert in its place "five (5)."

Section 7. Prior Enactments Superseded

Any adoptions and/or amendments to Chapter 20, Article II of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 8. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 9. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

Director Gleeson, explained this is a housekeeping Ordinance to make sure the City is in compliance with state and federal guidelines, and noted it has been many years since this ordinance has been updated.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to Adopt Ordinance 599.

Assistant Mayor Matteau read the explanation of proposed action into record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges -yes

Batchelder - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Resolution 2023-12 Primex³ Workers' Compensation Multi-Year CAP Program

RESOLUTION 2023-12

Primex³ Workers' Compensation Multi-Year CAP Program

BE IT RESOLVED by the City Council of the City of Claremont, New Hampshire after public hearing duly noticed that:

WHEREAS the City participates in a membership agreement with Primex³ to provide risk management and workers' compensation coverage for the City's workers' compensation loss exposures; and

WHEREAS based on the City's participation in the Workers' Compensation Program, Primex³ has offered the City a CAP of a maximum 8% increase in its contribution rates over the preceding year through the 2025 participation year; and

WHEREAS the City is legally required to carry workers' compensation coverage; and

WHEREAS the CAP Agreement includes a non-appropriation clause;

NOW THEREFORE BE IT RESOLVED that the City hereby accepts the offer of the New Hampshire Public Risk Management Exchange (Primex³) to enter into its Workers' Compensation Contribution Assurance Program (CAP) as of the date of the adoption of this resolution, and to be contractually bound to all of the terms and conditions of Primex³ risk management pool membership during the term of the Workers' Compensation Contribution Assurance Program and that the coverage provided by Primex³ in each year of membership shall be as then set forth in the Primex³ coverage documents; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to enter into said multi-year agreement and to execute all documents and undertake all actions as may be required to implement this resolution. *(Majority vote required)*

Director Richmond explained every three years this comes to Council to lock in a contract, which allows for a fixed cost. This contract guarantees not to increase more than 6% a year.

A motion was made by Councilor Mooshian and seconded by Councilor Koloski to adopt Resolution 2023-12.

Councilor Mooshian read resolution 2023-12 into the record.

Mayor asked to clarify the guarantee rate. Ms. Richmond clarified it should be 6%, and will change the resolution to reflect this.

Mayor Girard opened up a public hearing, no one spoke. Mayor closed public hearing.

Roll call:

Contois – yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Batchelder - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

COMMITTEE REPORTS

None.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Stone asked if the Council will receive a financial report at the second Council meeting. Ms. Richmond explained why the report was late.

Councilor Stone noted the Recreation Center had discrepancies on their monthly report. It was explained a lot of deposit activity had not been updated yet, along with the transition to BS&A.

Councilor Kolsoki shared concern over the City events, and wants to see them on Facebook and our City website.

Councilor Stone asked for an update on how many absentee ballots have been issued from the Clerk's Office.

Councilor Koloski asked for an update for the cables above pleasant street that were used for the Alumni Banner.

Councilor Stone motioned to remove Councilor Contois from Historic District Committee. No one Seconded.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 7:18 p.m., a motion was made by Councilor O'Hearne and seconded by Councilor Koloski to adjourn.

Voice vote :

Contois - yes

O'Hearne - yes

Stone – yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council